

Weighment Of Consignments In Wagon-Load Or Train-Load Rules, 1990

Source: <https://indiankanoon.org/doc/193084272/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

0

]

Union of India - Act

Weighment Of Consignments In Wagon-Load Or Train-Load Rules, 1990

UNION OF INDIA

India

Weighment Of Consignments In Wagon-Load Or Train-Load Rules, 1990

Rule WEIGHMENT-OF-CONSIGNMENTS-IN-WAGON-LOAD-OR-TRAIN-LOAD-RULES-1990 of 1990

Published on 3 July 1990

Commenced on 3 July 1990

[This is the version of this document from 3 July 1990.]

[Note: The original publication document is not available and this content could not be verified.]

Weighment Of Consignments In Wagon-Load Or Train-Load Rules, 1990

Published vide Notification Gazette of India, Extra, Part 2, Section 3(i), dated 3.7.1990
1563.

G.S.R. 615(E), dated July 3,1990.- In exercise of the powers conferred by clause (g) of sub-section (2) of Section 87 read with Section 79 of the Railways Act, 1989 (

24 of 1989

), the Central Government hereby makes the following rules, namely :-

1.

(1)

These rules may be called the Weighment of Consignments in Wagon-load or Train-load Rules, 1990.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.- In these rules unless the context otherwise requires :

(a)

"Act" means the Railways Act, 1989 (25 of 1989) ;

(b)

"Schedule" means Schedule annexed to these rules ;

(c)

"Train-load consignment" means consignment carried at train-load rate as notified by the Central Government from time to time ;

(d)

"Wagon-load consignment" means consignment carried at wagon-load rate as notified by the Central Government from time to time ;

(e)

Words and expressions used and not defined in these rules but defined in the Act shall have the meaning respectively assigned to them in the Act.

3.

Weighment of Wagon-load or Train-load consignments at destination.-

(1)

The consignee or the endorsee of a wagon-load or a train-load consignment booked at railway risk rate may, if he has reason to believe that the wagon offered to him for delivery at destination does not contain the quantity of goods entrusted for carriage, make a request in writing to the Divisional Commercial Superintendent or any other railway servant authorised in this behalf for the weighment of such consignment at destination station.

(2)

Subject to Rule 4, any railway servant authorised in this behalf may allow request for weighment made under sub-rule (1) on a railway weigh-bridge on payment of charges prescribed in the Schedule and demurrage charges, if any.

4.

Circumstances for disallowing weighment.-

Where a request has been made under Rule 3, any railway servant authorised in this behalf may disallow such request if;

(1)

The consignment is received in covered wagon, and the seals of the loading station are intact and there is no other evidence of the consignment having been tampered in transit;

(2)

the consignment has been received in open wagon and there is no sign of tampering of the original packing or other evidence of such consignment having been tampered in transit;

(3)

the consignment is of perishable nature and is likely to lose weight in transit;

(4)

in the opinion of such railway servant, the weighment is not feasible due to congestion in the yard;

5.

Weighment without prejudice.-

Weighment done on request under Rule 3 shall be without prejudice to the rights of the railway administration to disclaim liability under the Act or under any other law for the time being in force.

[SCHEDULE I

[Substituted by Notification No. G.S.R. 15(E), dated 9.1.2001 (w.e.f. 3.7.1990)]

(See sub-rule 29 of rule 3)

Charges for Weighment of Wagons at the Destination

Description of Wagon

Weighment charges

(i) (a) Per B.G. 8-wheeled wagon

Rs.

3620.00

(b) Per B.G. 4-wheeled wagon

Rs.

1450.00

(ii) (a) Per M.G. 8-wheeled wagon

Rs.

1000.00

(b) Per M.G. 4-wheeled wagon

Rs.

500.00

(iii) Per N.G. 4-wheeled wagon

Rs.

280.00

II

(See sub-rule 29 of rule 3)

Additional charges for Haulage of Wagons

Description of Wagon

Haulage charges

(i) (a) Per B.G. 8-wheeled wagon

Rs.

3620.00

(b) Per B.G. 4-wheeled wagon

Rs.

1450.00

(ii) (a) Per M.G. 8-wheeled wagon

Rs.

1100.00

(b) Per M.G. 4-wheeled wagon

Rs.

550.00

(iii) Per N.G. 4-wheeled wagon

Rs.

310.00

]

Related AI tags, queries and research notes

Translation